



Instructions for Nonimmigrant Petition Based on Blanket L Petition

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-129S
OMB No. 1615-0010
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What Is the Purpose of Form I-129S?

This petition is for an employer (petitioner) to classify an employee (beneficiary) as an L-1 nonimmigrant intracompany transferee under a blanket L petition (LZ) approval.

Who May File Form I-129S?

A petitioner with an approved blanket L-1 petition may file Form I-129S to classify a beneficiary, who is outside the United States, as an executive, manager, or specialized knowledge professional.

If the beneficiary is in the United States and a petitioner is requesting a change of status or extension of stay for that beneficiary, the petitioner should file Form I-129S **with** Form I-129, Petition for a Nonimmigrant Worker.

General Instructions

We provide free forms through the U.S. Citizenship and Immigration Services (USCIS) website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your petition. USCIS will not accept a stamped or typewritten name in place of any signature on this petition. A legal guardian may also sign for a mentally incompetent person. If your petition is not signed, or if the signature is not valid, we will reject your petition. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your petition, you must submit all evidence and supporting documents listed in the **What Evidence Must You Submit** and/or **Specific Instructions** sections of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the petition;

2. You reviewed and understood all of the information contained in, and submitted with, your petition; and
3. All of this information was complete, true, and correct at the time of filing.

If you fail to attend your biometric services appointment, USCIS may deny your petition.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information.

USCIS Contact Center. For additional information on the petition and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-129S

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this petition, use the space provided in **Part 10. Additional Information** or attach a separate sheet of paper; type or print the beneficiary's name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if the beneficiary has never been married and the question asks "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If the answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

Specific Instructions

Part 1. Information About The Employer (Petitioner)

Item Number 1. Name of Petitioning Organization. Provide the full legal name of the company or organization (petitioner) that is petitioning for classification of an employee (beneficiary) as an L-1A (Manager or Executive) or L-1B (Specialized Knowledge) professional nonimmigrant.

Item Numbers 2.a. - 3. Petitioner's Mailing Address. Provide the U.S. mailing address for the petitioner. Also indicate whether the sponsoring company or organization's mailing address is the same as its physical address.

Item Numbers 4.a. - 4.e. Petitioner's Physical Address. Provide the U.S. physical address for the petitioner.

Item Numbers 5. - 8. Petitioner's Contact Information. Provide the petitioner's telephone and fax numbers as well as the business email and website addresses (if any).

Item Numbers 9. - 10. Petitioner's Employees in the United States. Indicate whether the petitioner employs more than 50 individuals in the United States and if more than half of those employees (50 percent) are in H-1B, L-1A, or L-1B nonimmigrant status.

Part 2. Information About the Proposed Position and Prior Periods of Stay in the United States

Item Numbers 1.a. - 1.b. Proposed Employment. Select the appropriate box to indicate the nature of the beneficiary's position or proposed employment in the United States if the petition to classify the beneficiary is approved.

Item Numbers 2.a. - 2.b. Dates of Proposed Employment. Provide the beneficiary's dates of proposed employment.

Item Numbers 3.a. - 6. Prior Periods of Stay in the United States. If the beneficiary was previously in the United States in a work-authorized capacity during the last seven years, provide the dates of employment and the beneficiary's nonimmigrant status.

Part 3. Information About the Beneficiary

Item Number 1. Alien Registration Number (A-Number) (if any). Provide the beneficiary's A-Number (if any). The beneficiary's A-Number is the number used to identify if USCIS already has any immigration records for the beneficiary.

Item Number 2. USCIS Online Account Number (if any). You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Item Number 3. U.S. Social Security Number (if any). Provide the beneficiary's U.S. Social Security number.

Item Numbers 4.a. - 4.c. Beneficiary's Full Name. Provide the beneficiary's full legal name.

Item Numbers 5.a. - 5.c. Other Names Used. Provide all other names the beneficiary has ever used, including aliases, maiden name and nicknames.

Item Numbers 6.a. - 7. Beneficiary's Foreign Mailing Address. Provide the beneficiary's foreign mailing address. Also indicate whether the beneficiary's foreign mailing address is the same as his or her foreign physical address.

Item Numbers 8.a. - 8.f. Beneficiary's Foreign Physical Address. Provide the beneficiary's foreign physical address.

Item Number 9. Date of Birth. Provide the beneficiary's date of birth in mm/dd/yyyy format.

Item Number 10. Sex. Indicate whether the beneficiary is male or female as provided on his or her birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence provided to USCIS, if applicable.

Item Numbers 11. - 13. Place of Birth. Provide the name of the city or town, province or state, and country where the beneficiary was born.

Item Number 14. Country of Citizenship or Nationality. Provide the name of the country where the beneficiary is a citizen and/or national. This is not necessarily the country where the beneficiary was born. If the beneficiary does not have citizenship in any country, type or print "stateless" and provide an explanation in **Part 10. Additional Information**.

Part 4. Information About the Proposed United States Employment

Item Number 1. Blanket L Petition Receipt Number. Provide the receipt number for the approved blanket L petition upon which this petition is based.

Item Number 2. Forms Filed with Form I-129S. Indicate whether you are filing Form I-129 with this petition.

Item Numbers 3.a. - 3.e. Proposed Employment Address for the Beneficiary. Provide the U.S. address where the beneficiary will perform work as an L-1A or L-1B professional nonimmigrant.

Item Numbers 4. - 6. Wages and Hours of Proposed Employment. Provide the wages per year the beneficiary will receive and the number of hours the beneficiary will work each week for the proposed employment. Also describe any other compensation the beneficiary will receive, including dollar value (if applicable).

Item Numbers 7. - 8. Proposed Job Title and Duties. Provide the job title the beneficiary will hold and the duties he or she will perform while in the United States. Also indicate how much time the beneficiary will spend performing those duties on a daily basis.

Item Numbers 9. - 11. Primary Worksite. If the beneficiary will perform work as an L-1B specialized knowledge professional, indicate whether the beneficiary will work primarily offsite and, if yes, who will supervise and control the beneficiary's work and the amount of time he or she will spend overseeing the beneficiary's work. Also, explain how the beneficiary's specialized knowledge is related to the petitioner and how the offsite placement is not an arrangement to provide "labor for hire."

Part 5. Information About Foreign Employment

Item Numbers 1.a. - 1.c. Qualifying Foreign Position. Select the appropriate box to indicate the nature of the beneficiary's qualifying position while working for a qualifying foreign employer for the requisite one continuous year out of three years. Visit the USCIS website at www.uscis.gov/eir/visa-guide/l-1-intracompany-transferee/l-1-visa for more information.

Item Numbers 2. - 3.f. Qualifying Foreign Employer Name and Address. Provide the foreign addresses where the beneficiary worked for a qualifying foreign employer for the required one continuous year out of three years.

Item Numbers 4. - 13. Other Information About the Beneficiary's Foreign Employment. Provide the job titles the beneficiary held while working for the qualifying foreign employer, the dates of such employment, the duties he or she performed during the required one continuous year out of three years, the wages he or she earned per year, and the hours he or she worked per week.

Part 6. Certification Regarding the Release of Controlled Technology or Technical Data to Foreign Persons in the United States

Item Numbers 1. - 2. Indicate whether the petitioner must obtain a license to release technology or technical data to the beneficiary. For a description of the requirements based on the Export Administration Regulations (EAR) and the International Traffic In Arms Regulations (ITAR), see the **Certification Pertaining to the Release of Controlled Technology or Technical Data to Foreign Persons in the United States** section in these Instructions.

Part 7. Contact Information, Certification, and Signature of the Petitioner or Authorized Signatory

Item Numbers 1. - 6. You must sign and date your petition and, if applicable, provide your daytime telephone number, mobile telephone number, and email address. A stamped or typewritten name in place of a signature is not acceptable.

Part 8. Interpreter's Contact Information, Certification, and Signature

Item Numbers 1. - 6. If you used anyone as an interpreter to read the Instructions and questions on this petition to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the petition.

Part 9. Contact Information, Declaration, and Signature of the Person Preparing this Petition, if Other Than the Petitioner

Item Numbers 1. - 6. The person who completed your petition, if other than the petitioner, must sign this section. If the same individual acted as your interpreter and your preparer, then he or she should complete both **Part 8.** and **Part 9.** A stamped or typewritten name in place of a signature is not acceptable.

Part 10. Additional Information

Item Numbers 1.a. - 7.d. If you, the petitioner, need extra space to provide any additional information within this petition, use the space provided in **Part 10. Additional Information.** If you need more space than what is provided in **Part 10.**, you may make copies of **Part 10.** to complete and file with your petition, or attach a separate sheet of paper. Type or print the beneficiary's name and A-Number (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

We recommend that you print or save a copy of your completed petition for your records.

What Evidence Must You Submit?

You must submit all evidence requested in these Instructions with your petition. If you fail to submit required evidence, USCIS may reject or deny your petition for failure to submit requested evidence in accordance with 8 CFR 103.2(b)(1) and these Instructions.

You must file your petition with the following documents:

1. A copy of the approval notice for the blanket L petition; and
2. A letter from the beneficiary's foreign qualifying employer detailing the beneficiary's dates of employment, job duties, qualifications, and salary. The letter must also show that the beneficiary worked for the employer for at least the required one continuous year out of three years in an executive, managerial, or specialized knowledge professional capacity. Visit the USCIS website at www.uscis.gov/eir/visa-guide/l-1-intracompany-transferee/l-1-visa for more information about the one continuous year out of three years requirement.

Where To File?

Please see our website at www.uscis.gov/I-129S for the most current information about where to file this petition.

Beneficiaries Who Must Obtain a Nonimmigrant Visa Overseas. If the beneficiary requires a nonimmigrant visa, he or she should present the completed or previously approved petition at a U.S. Embassy or a U.S. Consulate abroad.

Beneficiaries in the United States Who Choose to Extend/Change Nonimmigrant Status. If the beneficiary is in the United States and would like to extend or change nonimmigrant status, file this petition at the USCIS service center that approved the blanket L petition along with Form I-129.

Citizens of Canada under NAFTA. Petitioners who seek L-1 classification for citizens of Canada under the North American Free Trade Agreement (NAFTA) may also have the beneficiary present Form I-129S to a CBP officer in conjunction with an application for admission. The beneficiary may do this at either:

1. A "Class A" port-of-entry located on the U.S./Canada land border; or
2. A U.S. pre-clearance/pre-flight inspection station in Canada.

Certification Pertaining to the Release of Controlled Technology or Technical Data to Foreign Persons in the United States

U.S. Export Controls on the Release of Controlled Technology or Technical Data to Foreign Persons. The Export Administration Regulations (EAR) (15 CFR Parts 770-774) and the International Traffic in Arms Regulations (ITAR) (22 CFR Parts 120-130) require U.S. persons to seek and receive authorization from the U.S. Government before releasing to foreign persons in the United States controlled technology or technical data. Under both the EAR and the ITAR, release of controlled technology or technical data to foreign persons in the United States, even by an employer, is deemed as an export to that person's country or countries of citizenship or nationality. One implication of this rule is that a U.S. company must seek and receive a license from the U.S. Government before it releases controlled technology or technical data to its nonimmigrant workers employed as L-1 beneficiaries.

Requirement to Certify Compliance with U.S. Export Control Regulations. The U.S. Government requires each company or other entity to certify that it has reviewed the EAR and ITAR and determine whether it will require a U.S. Government export license to release controlled technology or technical data to the beneficiary. If an export license is required, then the company or other entity must further certify that it will not release or otherwise provide access to controlled technology or technical data to the beneficiary until it has received from the U.S. Government the required authorization to do so. The petitioner must indicate whether or not a license is required on **Part 6. Certification Regarding the Release of Controlled Technology or Technical Data to Foreign Persons in the United States.**

Controlled Technology and Technical Data. The licensing requirements described above will affect only a small percentage of petitioners because most types of technology are not controlled for export or release to foreign persons. The technology and technical data that are, however, controlled for export or release to foreign persons are identified on the EAR's Commerce Control List (CCL) and the ITAR's U.S. Munitions List (USML). The CCL is found at 15 CFR 774, Supp. 1 and www.ecfr.gov/current/title-15/subtitle-B/chapter-VII/subchapter-C/part-774. The USML is found at 22 CFR 121.1 and www.ecfr.gov/current/title-22/chapter-I/subchapter-M/part-121. The EAR-controlled technology on the CCL generally pertains to that which is for the production, development, or use of what are generally known as "dual-use" items. The ITAR-controlled technical data on the USML generally pertains to that which is directly related to defense articles.

The U.S. Department of Commerce's Bureau of Industry and Security (BIS) administers the CCL and is responsible for issuing licenses for the release to foreign persons of technology controlled under the EAR. The U.S. Department of State's Directorate of Defense Trade Controls (DDTC) administers the USML and is responsible for issuing licenses for the release to foreign persons of technical data controlled under the ITAR. Information about the EAR and how to apply for a license from BIS are at www.bis.doc.gov. Specific information about EAR's requirements pertaining to the release of controlled technology to foreign persons is at www.bis.doc.gov/index.php/policy-guidance/deemed-exports. Information about the ITAR and how to apply for a license from DDTC are at www.pmddtc.state.gov. Specific information about the ITAR's requirements pertaining to the release of controlled technical data can be found on DDTC's Frequently Asked Questions page at www.pmddtc.state.gov/ddtc_public?id=ddtc_public_portal_faq_landing by reviewing the Topic Area "Licensing of Foreign Persons."

Address Change

A petitioner or beneficiary who is not a U.S. citizen must notify USCIS of their new address within 10 days of moving from their previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

You must have a United States address to file this petition.

Initial Processing. Once USCIS accepts your petition, we will check it for completeness. If you do not completely fill out this petition, you will not establish a basis for your eligibility and USCIS may reject or deny your petition.

Requests for More Information. USCIS may request that you provide more information or evidence to support your petition. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your petition. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-129S involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of the decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this petition, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-129S, we will deny your petition and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this petition, and the associated evidence, is collected under the Immigration and Nationality Act (INA), 8 U.S.C. sections 1103, 1184 and 1202, and 8 CFR parts 103 and 214. Additionally, Public Law 114-113, requires the collection of information regarding the number of H-1B and L-1 employees in the United States.

PURPOSE: The primary purpose for providing the requested information on this petition is to request classification of alien employees as L-1 nonimmigrant intracompany transferees under a previously approved blanket L petition. DHS uses the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including the beneficiary's Social Security number (if applicable), and any requested evidence, may delay a final decision or result in denial of your petition.

ROUTINE USES: DHS may share the information you provide on this petition and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-001 - Alien File, Index, and National File Tracking System, DHS/USCIS-007 - Benefits Information System, and DHS/CBP-011 U.S. Customs and Border Protection TEC] and the published privacy impact assessments [DHS/USCIS/PIA-016a Computer Linked Application Information Management System and Associated Systems and DHS/CBP/PIA-009 TECS System: CBP Primary and Secondary Processing] which you can find at www.dhs.gov/privacy. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 2.817 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the petition, preparing statements, attaching necessary documentation, and submitting the petition. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Regulatory Coordination Division, Office of Policy and Strategy, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0010. **Do not mail your completed Form I-129S to this address.**